HOA Board Minutes: July 3rd, 2025 –

Montclair Board of Governors.

Location: Meeting was held on July 3rd, 2025, at the Warren Road Community Center.

Special Meeting due to the large group of residents, city leaders, sheriff and other non-residents present discussing the current challenges happening at the Carolyn Gardner Property on Washington Rd and Parkers Gas Station. News Media is also present.

Members in attendance: David Zange, Greg Lacock, Wes Hopkins, Kathy Kennedy, Trey Keenan, Melvin La Pan, Drew Robinson, Anne Rheins.

Called to Order: at 6:45pm. David Zange opened the meeting, announcing that this meeting and the agenda is centered around Nichols Land Management and the current situations with the Parkers Gas Station.

Meeting Notes and Speakers:

- **1st Speaker**: Tina Slendak began speaking. There was acknowledgement that she was present at our HOA Board Meeting last year when Carl Nichols spoke to the community, provided his building diagrams and promised to zone the property for a medical office building. However, when he approached city planning and zoning, he zoned it differently "B2", not "B1 or Professional".
- Tina requested we do not be mad with planning and zoning; they are doing their jobs. Please direct any complaints or upset toward Carl Nichols and Nichols Land Management.
- Tina stated there is a drawing of the property and possible concept plans submitted for comments back from the city to get approval. This is where the feedback is given to Parkers on what is a problem or not a problem. If they meet all requirements (which they have not currently) they can then proceed with construction plans. Nothing however has been approved or looking to be approved at this point from either side (developer or city). Mr. Nichols still owns the property until all contingent conditions, alterations or requirements are met.
- **2nd Speaker**: Brian from planning and zoning addressed the community with specifics around the process of submitting plans through the development and review community to review any and all requirements (traffic engineering, any studies, utilities, fire, etc.)
- Currently planning and zoning have not yet been provided with feedback from the fire department. 45 days is provided by law for the city to provide their comments, most times no plans are approved the first time ever.
    - Several residents asked questions about the plans submitted by the developers. So far the owner (not parkers) had originally submitted the conceptual plan for the office building over a year ago, May 2024.
    - The owner does not have to resubmit any new conceptual design even if it was changed per planning and zoning. The zoning is B2 zoning and a convenance store or gas station can be used per the city.
- Many Residents asked to know why the conditions did not state he had to keep the doctor's office design as promised. Planning and Zoning said the conditions were not clearly stated when the applicant submitted his plans. Residents and Board members challenged this because of the

repeated promises the developer made to the community and to the city meeting minutes in May of 2024. Traffic conditions would also not support this type of development. Lawyers have been consulted by the HOA Board and residents (independently) for deceptive intent. The owner lied repeatedly to the community and said he would protect Montclair.
    - Board minutes and city minutes state this.
- Residents also addressed grievances to city employees and leaders that this was done against the current layout of small professional businesses that are all around us, on Warren Road and Pleasant Home. Tina Slendak reiterated that she agrees with us but no one from Montclair was there because of what we were promised. Trent Mercer spoke up and stated that he will make sure the planning and zoning, city leaders will be told and know that this is unacceptable. They should have known there was a problem, red flag, due to the Jim Hudson property issues in the past and how that was made conditional as it was supposed to be. None of this should have happened and the city did not protect us or this area.
    - Questions were raised regarding the active water wells on the property and our active 60+ year old could be contaminated. EPA has been consulted by residents, but city indicated that it is for us to pursue.
    - Planning and Zoning stated that there were restrictive buffer requirements on all property lines. However, per Trent Mercer there were also buffer reductions along the neighborhoods pool property side (R1) was reduced by the city leaders from a 50-foot buffer to a 30-foot buffer. This also should not have been done. This is stated in the city minutes, and staff recommendations did not address the west side of the property line that is zoned (R1) that should be a 50-foot buffer but was not enforced properly.
        - City Minutes also stated there was no objection but that is a lie based on the city minutes.
- Sheriff Brantley spoke to the community about his thanks for voting for him. He wanted to stop back by and attend Montclair HOA to enforce to us his vision for the safety of our county and his open-door policy. He also introduced one of his Lieutenants to provide feedback to the community and help answer any questions.
    - Residents did ask about a substation if Parkers Gas Station becomes a reality. He stated that technology has gotten better so they do not require a physical location anymore, they now have the reporting technology in their cars. Homelessness was also discussed.

Previous Board Minutes: No Minutes reviewed for June 2025, will be reviewed via email or at the next meeting for the board.

Financial and P&L: (Wes)
- No Business Discussed due to the issues centering around Parkers Gas Station.

Aging Report: (Bookkeeper)
- No Business Discussed due to the issues centering around Parkers Gas Station.

Legal: (Wes)
- No Business Discussed due to the issues centering around Parkers Gas Station.

Insurance:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Communication/Welcoming:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Website:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Newsletter:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Pool:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Courts:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Parks:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Old Business:

- No Business Discussed due to the issues centering around Parkers Gas Station.

New Business:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Traffic and Safety:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Guest Speakers:

- No Business Discussed due to the issues centering around Parkers Gas Station.

Resident Questions:

- No Business Discussed due to the issues centering around Parkers Gas Station.

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Motion to adjourn the meeting at 7:50pm all in favor.